



**ZACHARY W. CARTER**  
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**LAW DEPARTMENT**  
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May 7, 2014

**VIA ECF**

Honorable Pamela K. Chen  
United States District Judge  
Eastern District of New York  
225 Cadman Plaza East  
Brooklyn, New York 11201

Re: Marvin Pickett v. City of New York, et al., 13 CV5722 (PKC)(JO)

Your Honor:

As counsel for defendant in the above-referenced action, I write to inform the Court that the parties have reached a settlement. In connection therewith, I enclose a fully-executed STIPULATION OF SETTLEMENT AND ORDER OF DISMISSAL to be so ordered by Your Honor. We respectfully request that Your Honor endorse the enclosed STIPULATION.

We thank the Court for its time and attention to this request.

Respectfully submitted,

/s/

Deborah L. Mbabazi  
Special Assistant Corporation  
Counsel  
Special Federal Litigation Division

Encl.

cc: Honorable James Orenstein (Via ECF)

cc: Robert Marinelli, Esq. (Via ECF)  
*Attorney for Plaintiff*

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

-----X  
MARVIN PICKETT,

Plaintiff,

**STIPULATION AND  
ORDER OF DISMISSAL**

-against-

13 CV 5722 (PKC)(JO)

CITY OF NEW YORK; Police Officer SAUL  
MOLINA, Tax No. 17087; and JOHN and JANE  
DOE 1 through 10, individually and in their official  
capacities (the names John and Jane Doe being  
fictitious, as the true names are presently unknown),

Defendants.  
-----X

**WHEREAS**, the parties have reached a settlement agreement on April 9, 2014,  
and now desire to resolve the remaining issues raised in this litigation, without further  
proceedings and without admitting any fault or liability;

**NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED**, by  
and between the undersigned, that

1. The above-referenced action is hereby dismissed with prejudice as against  
all parties; and
2. Notwithstanding the dismissal of this action in accordance with this  
agreement, the District Court shall continue to maintain jurisdiction over  
this action for the purpose of enforcing the terms of the settlement  
agreement reached between the parties and set forth in the Stipulation of  
Settlement executed by the parties in this matter.

Robert Marinelli, Esq.  
*Attorney for Plaintiff*  
299 Broadway, Ste. 1501  
New York, NY 10007



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Robert Marinelli, Esq.  
*Attorney for Plaintiff*

ZACHARY W. CARTER  
Corporation Counsel of the  
City of New York  
*Attorney for Defendants City of New York,  
and Saul Molina*  
100 Church Street  
New York, New York 10007



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Deborah L. Mbabazi  
*Special Assistant Corporation Counsel*

SO ORDERED:

Dated: New York, New York  
MAY, 2014

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HON. PAMELA K. CHEN  
UNITED STATES DISTRICT JUDGE